



office of the
independent
adjudicator

COMPLAINT OUTCOME

Office of the Independent Adjudicator for Higher Education

Student:	Harry Wright
Higher Education Provider:	Nottingham Trent University
Our reference number:	OIA/1639159/26
Our Decision:	Not Justified
Date of this document	2 September 2026

Our Key Conclusions

1. We have looked carefully at what Harry and the University have said to us about the complaint. We have decided that the complaint is **Not Justified**.
2. **Our key conclusions are:**
 - 2.1. That the University followed its process in concluding that Harry had committed misconduct and considering his appeal;
 - 2.2. That it reasonably dismissed the points of Harry's appeal regarding his the lack of supporting evidence for the allegations against him, the intent behind his actions, and the sanction applied, because his appeal was not supported by evidence.
3. In the rest of this document, we explain our reasons for coming to these conclusions.

Background

4. Harry was studying towards a part-time MSc in Smart Agriculture at the University.
5. On 11 March 2025, staff reported that Harry repeatedly swore at a lecturer during class. This report was supported by several witnesses who provided examples of similar behaviour in the past and the was referred for disciplinary investigation. On 8 April 2025, the Investigator decided not to take formal action because she was satisfied Harry was overwhelmed and did not have any malicious intent.
6. On 28 October 2025, the University received two reports from staff of incidents involving Harry on 23 October 2025. The first involved him having a conversation with a

member of staff while in the Animal Unit which caused concern and which the staff member considered to be inappropriate. The second report concerned an interaction he had with one of his tutors (Ms A) at a bus stop. Ms A alleged that Harry initially asked her whether he would be supplied sulphuric acid he had requested for his experiments. Harry then made comments concerning her religion and ethnicity while pulling faces at her responses. At one point, Ms A said he took her book from her pocket without permission. She said Harry called her a “cheapskate” when he saw the price of the book and a “weirdo” for when she explained her dissertation topic.

7. Ms A reported a further incident on 3 November 2025 where she alleged Harry confronted her at another bus stop to ask again if she had organised the acid he had requested, and that he swore and walked away when she said she hadn't.
8. Harry was contacted by the Academic Registrar on 6 November 2025 and invited to attend a meeting about the incidents and sign a restriction agreement saying that he should avoid contact with Ms A and not attend the Animal Unit while the investigation was ongoing.
9. Harry providing a written statement denying the allegations and declining the meeting on 10 November 2025. He alleged that the statements were a combination of misinterpretations and deliberate fabrications of what he had said.
10. A further report was received from a lecturer on 11 November 2025 about an alleged interaction with Harry on 4 November 2024 where he asked her about being a new lecturer, questioning her qualifications, and said that he would “make [her] life hell” when she taught him the following term.
11. The Investigating Officer attempted to arrange a meeting with Harry on several occasions but he declined to attend or sign the restriction agreement. Harry did sign the restriction agreement on 25 November 2025 after being informed that failing to do so would lead to his full suspension.
12. The Investigating Officer met with Harry on 3 December 2025 and completed a Case Report on 5 December 2025. This dismissed the allegations about the incident in the Animal Unit and Harry's interaction with his lecturer. However, it concluded that the allegations relating to Harry's two interactions with Ms A were proven on the balance of probabilities and could amount to misconduct under the University's Code of Behaviour. He informed Harry on 8 December 2025 that he intended to refer the matter to Disciplinary Meeting to be considered by a Panel on 15 December 2025. Harry responded on 9 December 2025, noting that that he had given his account, and he had nothing else he wished to be considered. In light of this communication, the Investigating Officer decided to cancel the Disciplinary Meeting and conclude the investigation on the basis of his case report. Harry was given a formal written warning and advised that the terms of the restriction agreement would remain in place.
13. Harry appealed this decision under the Student Code of Conduct on 13 December 2025.

14. The University dismissed Harry's appeal and provided him with a Completion of Procedures (COP) letter on 18 December 2025.
15. Harry complained to us about the University's decision on 22 January 2026. His complaint alleges that staff had deliberately exaggerated and fabricated allegations against him, refused him reasonable adjustments and denied him key course resources in order to suppress and sabotage his academic work. He further complains that the University's sanctions have led to him not being able to attend classes and have caused some of his research to be destroyed.

Our Approach

16. Our review decides whether a complaint is Justified, Partly Justified, or Not Justified. In reaching our decision we consider whether the University applied its regulations properly and followed its procedures. We also consider whether any decision made by the University was reasonable.
17. We may not refer to all documentation provided and points raised during the course of our review, but we include all material which we consider necessary to make a decision about the complaint.
18. A review is different to an investigation. Our approach considers the final decision of the University and does not normally consider any matter which the University has not had the opportunity to respond to.
19. Harry's complaint to us touches on a range of topics which were not raised in his disciplinary process or subsequent appeal, and therefore fall outside of the scope of our review. These includes:
 - The SAR Harry says he submitted on 2 December 2025 and the University refused on 19 December 2025. This was not discussed in Harry's appeal, and we cannot see evidence that this SAR was relevant to Harry's disciplinary outcome. We understand this matter was under investigation by the ICO at the time of Harry's complaint to us. We think this is the appropriate forum to raise any concerns Harry has with the University's response.
 - Harry's complaints about steps to University staff have taken sabotage his research, spread rumours about him, deny him access to necessary course resources, refuse to amend his module selection or change his dissertation supervisor. None of these matters appear to be relevant to the University's disciplinary decision and were not raised under that process. In order for us to consider these matters, Harry would need to raise a new complaint (or complaints) about them and complete the University's internal procedures.
20. We note Harry signed a restriction agreement on 25 November 2025, agreeing not to enter the Animal Unit while the disciplinary investigation was ongoing. The allegations about Harry's conduct in the Animal Unit were not upheld, and therefore this restriction should have been ended at the conclusion of the disciplinary investigation. However, it was mistakenly stated in the disciplinary outcome that this restriction would continue. This was corrected on 16 January 2025 by the Investigatory Officer who apologised for

the error and any confusion and explained that Harry could enter the animal unit. It is obviously regrettable that this oversight occurred, but this in itself should not have caused Harry material disadvantage, as Harry had no need to enter the Animal Unit for his course.

21. However, Harry has complained to us that the University changed the location of a mandatory module on sustainability to the “forbidden zone”, which we assume to refer to the Animal Unit, and his ongoing ban meant he was unable to attend this module, causing him significant academic disadvantage. We note that he has not explained when this happened but this impact appears to have post-date the University’s COP and therefore falls outside of the scope of our review. We further note that Harry has not supplied any evidence demonstrating this change or location, any disadvantage it caused, or any steps he took to raise this with the University at the time. In order for us to review this matter, we would need to see that Harry had complained about it to the University and completed its internal procedures. The University could take into account at that point any part the mistaken extension of Harry’s ban on entering the Animal Unit played in causing him disadvantage.

Our Reasoning

Case handling

22. We have reviewed the University’s Student Code of Behaviour and we are satisfied that it was used to consider Harry’s complaint, that the consideration was conducted within a reasonable timeframe, and that the policy itself was reasonable.
23. We note that Harry was required to sign a restriction agreement while the allegations against him were being investigated. It is common for students to be partially or fully suspended while an investigation of this sort is ongoing. This is not a punishment, but it helps to manage any ongoing risks while the facts of a case are not yet established. In this case, we think the University acted reasonably by placing minimal restrictions on Harry’s freedom on campus and taking into account that he should not have needed to interact with Ms A or attend the animal unit for his course.
24. Harry complained to us that the University rushed its process to issue an early COP. We have reviewed Harry’s right to appeal under the policy and we note that the decision on such appeals is final, and therefore it was appropriate that the University issued a COP in response to his appeal. We note that the final decision was issued within five days of Harry submitting his appeal. However, we do not consider that this is evidence that the consideration was rushed, and this is consistent with the University’s conclusion that his appeal was not supported by evidence.
25. We observe that Harry’s disciplinary outcome was initially going to be referred to a Disciplinary Panel but that the Investigating Officer decided to simply issue a decision himself after Harry indicated he did not intend to engage with the Panel. Based on our experience, this is an unusual step. Under the University’s regulations, cases are usually referred to a Panel when the conduct may attract a sanction that is more severe than can be issued by the Investigating Officer, and it is not clear why this conclusion changed after Harry indicated he would not engage with the Panel. However, we note

that the sanction that was actually imposed was one that was available to be applied by the Investigating Officer under the Policy, and was consistent with his findings. We therefore cannot see that this materially disadvantaged Harry, particularly when he had clearly indicated he did not intend to participate in the Disciplinary Meeting and was therefore unlikely to have gained any benefit from going through this process.

Harry's complaint

Lack of supporting evidence

26. Harry complained in his appeal that the University decision lacked supporting evidence, and upholding the allegations on this basis was unreasonable.
27. The University concluded that its conclusions were supported by multiple witness statements and CCTV evidence which provided a sufficient basis to conclude that the conduct occurred on the balance of probabilities.
28. We note that the *balance of probabilities* is the appropriate standard of proof in disciplinary investigations. This is a lower standard of proof than *beyond all reasonable doubt*, which is required in criminal cases. The balance of probabilities only requires that the University is satisfied that something is more likely to have happened than not for it to be considered proven. In our view, where independent corroborating evidence is not available, it is reasonable for an Investigating Officer to use their judgement to determine whether one person's account is more likely to be true than another's.
29. We have reviewed the evidence the Investigating Officer relied on. We note that, in relation to Ms A's account of their interactions, Harry corroborated some points himself: such as the taking of the book without permission and calling Ms A a "cheapskate", and these points were taken to support the finding of misconduct.
30. For other points, the Investigating Officer used his judgement to determine what were proven. In relation to the allegation that Harry swore, for instance, the Investigating officer observed that he considered Ms A's account to be more plausible than Harry's given the range of allegations about Harry's interactions with staff and in light of the reports earlier in the year where multiple witnesses reporting him losing control swearing at lecturers on more than one occasion.
31. Harry did not raise specific examples of conclusions that he believed lacked evidence in his appeal, and we are therefore satisfied that the University reasonably dismissed this point, and this aspect of his complaint to us is Not Justified.

Misunderstanding

32. Harry argued that his intention during the interactions with Ms A was to be friendly and humorous with no malicious intent and this had simply been misinterpreted. He noted that his lack of malicious intention was upheld by the Investigating Officer. He therefore questioned how the Investigating Officer could go on to conclude that misconduct had taken place. The University observed that the code assesses whether a reasonable person would think the conduct is likely to cause offense (or otherwise meet the

definition), whether or not that offence is intentional. It noted that Harry's behaviour included personal remarks about ethnicity/religion, derogatory language and swearing, and physically removing property without consent. In our view, it reasonably it concluded that this behaviour met the threshold for misconduct, whether or not Harry held malicious intent, and therefore dismissed this aspect of his complaint.

Sanction

33. Harry complained that the sanction applied was disproportionate and caused him academic disadvantage. His appeal did not elaborate on either of these points. The University concluded that the sanction applied was proportionate and necessary to protect the University community and did not disadvantage Harry academically.
34. We have already discussed above the additional context Harry has raised about the impact of him being banned from the Animal Unit. We note that Harry's continued exclusion from the Animal Unit was not an intended sanction under the disciplinary process, and therefore not a relevant point of discussion under this section.
35. Harry has not argued that he has been disadvantaged by not being able to communicate with Ms A, and we are satisfied that this outcome was reasonable in light of the misconduct finding.
36. The remaining question is therefore the formal warning. In our view, this was one of the lighter sanctions available to the Investigating Officer and was proportionate to the finding that Harry had committed misconduct against Ms A on two occasions. It did not impact Harry academically, and we note that it was applied to his record for the minimum term of six months allowed under the Code, and was not therefore something that would impact Harry's academic prospects in the long-term. We have therefore concluded that the University reasonably dismissed this aspect of his complaint.